

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order, however, it was stapled to the moving papers and cannot be detached. Plaintiff will need to submit a proposed Order for execution. The trial date of August 17, 2026 is confirmed.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien seek admission pro hac vice in order to represent Defendant Medtronic, Inc. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application. One of the requirements is that notice of the hearing must be given at the time prescribed in CCP § 1005 unless the court has prescribed a shorter period. CRC 9.40(c)(1). The Applications were filed on June 26, 2026. The accompanying proof of service indicates service on the necessary parties via email on June 26, 2026. This is not timely per CCP § 1005(b). The Applications are **DENIED** without prejudice for not being filed or served in compliance with CCP § 1005(b).

EATMON, ET AL VS. LOCKWOOD, ET AL

CASE NUMBER: CVCV19-0191680

Tentative Ruling on Motion for Earnings Withholding Order: Judgment Creditors' Daniel Lockwood and Roseanne Lockwood move for an order to issue an earnings withholding order against the Judgment Debtor's spouse, Christine Eatmon, pursuant to CCP section 706.109. Judgment Debtor Jason Eatmon was timely served by mail with the motion and was additionally served by substitute service. Spouse Christine Eatmon was timely served by personal service. Christine Eatmon opposes the motion.

"An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion." CCP § 706.109. "Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." Fam. Code § 910(a). "Except as otherwise provided by statute, all property, real or personal, wherever situated, acquired by a married person during the marriage while domiciled in this state is community property." Fam. Code § 760. "It is well settled that earnings of either the husband or the wife acquired during the marriage constitute community property." *State Bd. of Education v. Woo* (2000) 82 Cal.App.4th 481.

Here, the Lockwoods seek to enforce a judgment entered against Jason Eatmon. It is undisputed that Jason Eatmon and Christine Eatmon are currently married and were married at the time the judgment was entered and the debt was accrued. While Christine Eatmon's wages are deposited into an account in the solely in her name, this does

not change the character of the wages as community property. The Court acknowledges that the judgment against Christine Eatmon was discharged in bankruptcy. However this does not exempt her wages from garnishment pursuant to 11 U.S. Code § 524(b)(2).

The Motion is **GRANTED**. An earnings assignment order shall be issued against the Judgment Debtor's spouse, Christine Eatmon. Judgment Creditors have submitted a proposed order that will be executed by the Court.

IN RE: MARTIN

CASE NUMBER: 26CV-0210536

Tentative Ruling on Petition for Change of Name: Petitioner Tracy Lynn Martin seeks to change her name to TabithaKaterina Tracy-Lynn Martin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

IN RE: MONDRAGON

CASE NUMBER: 26CV-0210282

Tentative Ruling on Petition for Change of Name: Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: PANDIT

CASE NUMBER: 26CV-0210214

Tentative Ruling on Petition for Change of Name: Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for Attorney's Fees: Plaintiffs/Cross-Defendants Dan Ponciano, Jean Ponciano, and Ashley Spurgeon request attorney's fees in the amount of \$281,845. The motion was originally noticed for hearing on June 29, 2026, however, the hearing was continued to July 20, 2026 by stipulation of the parties. The motion is opposed by Defendants/Cross-Complainants Charles H. Marx and Marlene Marx, individually and on behalf of the Marx Family 2012 Trust, and Cory Herzberg. As a preliminary matter, the motion was timely filed. CRC 3.1702(b)(1).

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed